

1 ENGROSSED SENATE
2 BILL NO. 1721

By: Seifried of the Senate

3 and

4 Lowe of the House

5
6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 3-173, as amended by Section 1, Chapter 306,
8 O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-173),
9 which relates to the Oklahoma Advisory Council on
10 Indian Education; extending sunset date; requiring
11 certain appointed members to be duly authorized
12 representatives of certain tribe, department, or
13 entity; providing method of authorization; requiring
14 certain member's service to cease if he or she does
15 not have certain authorization; requiring
16 notification; providing for filling of vacancy;
17 providing certain construction; requiring electronic
18 submission of certain report; updating statutory
19 language; providing an effective date; and declaring
20 an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-173, as
23 amended by Section 1, Chapter 306, O.S.L. 2023 (70 O.S. Supp. 2025,
24 Section 3-173), is amended to read as follows:

Section 3-173. A. There is hereby re-created to continue until
~~July 1, 2026~~ July 1, 2029, in accordance with the provisions of the
Oklahoma Sunset Law, the Oklahoma Advisory Council on Indian
Education.

B. The Council shall:

1 1. Make recommendations to the State Board of Education and the
2 Superintendent of Public Instruction in educational matters
3 affecting the education of Native American students;

4 2. Promote educational opportunities and improvement of the
5 quality of education provided to Native American students throughout
6 the state;

7 3. Advocate for Native American students in the state; and

8 4. Monitor and evaluate how the public education system of the
9 state impacts Native American students.

10 C. The Council shall be composed of eighteen (18) members as
11 follows:

12 1. Five members who shall each represent an Indian tribe in the
13 state, of which at least one shall represent an Indian tribe which
14 has an enrollment of ~~less~~ fewer than ten thousand (10,000) members
15 who reside in the state, appointed by the Speaker of the House of
16 Representatives from a list of nominations submitted by the elected
17 executive leaders of different Indian tribes in the state;

18 2. Four members who shall each represent the tribal education
19 departments of an Indian tribe in the state, appointed by the
20 President Pro Tempore of the Senate from a list of nominations
21 submitted by the elected executive leaders of different Indian
22 tribes in the state;

23 3. One member who shall represent the Oklahoma Council for
24 Indian Education, appointed by the Governor;

1 4. Two members who shall represent two different statewide
2 organizations representing public school teachers, appointed by the
3 President Pro Tempore of the Senate;

4 5. One member who shall represent a statewide organization
5 representing public school superintendents, appointed by the Speaker
6 of the House of Representatives;

7 6. One member who shall represent Oklahoma tribal colleges,
8 appointed by the Chancellor of Higher Education;

9 7. The Director of the Native American Cultural and Educational
10 Authority, or designee;

11 8. The Chancellor of Higher Education, or designee;

12 9. The Director of the Oklahoma Department of Career and
13 Technology Education, or designee; and

14 10. The Superintendent of Public Instruction, or designee.

15 D. 1. Appointments to the Council shall be made by September
16 1, 2023. The first meeting of the Council shall be called by the
17 Superintendent of Public Instruction. At the first meeting, the
18 members of the Council shall elect a chair and vice chair from among
19 the members. Meetings of the Council shall be held at least
20 quarterly at the call of the chair. Members shall serve at the
21 pleasure of their appointing authorities. A majority of the members
22 of the Council shall constitute a quorum to transact business, but
23 no vacancy shall impair the right of the remaining members to
24 exercise all of the powers of the Council. A vacancy on the Council

1 shall be filled by the original appointing authority. A vacancy on
2 the Council in a seat representing an Indian tribe in the state or
3 the tribal education department of an Indian tribe in the state may
4 be filled by the original appointing authority from a list of
5 nominations submitted by the elected executive leaders of Indian
6 tribes in the state. Appointments to fill any vacancy on the
7 Council shall be made within three (3) months following the vacancy.
8 The State Department of Education, Oklahoma Department of Career and
9 Technology Education, and the Oklahoma State Regents for Higher
10 Education shall provide staff, support, and information as requested
11 by the Council.

12 2. a. Each member appointed to the Council representing an
13 Indian tribe, tribal education department, or other
14 tribal entity shall be a duly authorized
15 representative of that tribe, tribal education
16 department, or tribal entity at the time of
17 appointment and throughout the duration of his or her
18 appointment. Authorized status shall be granted by
19 the elected executive leaders or the governing body of
20 the tribe or entity.

21 b. A member's service on the Council shall automatically
22 cease if he or she no longer serves as the authorized
23 representative of the tribe, tribal education
24 department, or other tribal entity the member was

1 appointed to represent. The appointing authority
2 shall be notified in writing by the tribe, tribal
3 education department, or other tribal entity of any
4 such change in authorization. Upon receipt of such
5 notice, the position shall be deemed vacant, and the
6 vacancy shall be filled as provided for in this
7 section.

8 c. Any member of the Council on the effective date of
9 this act shall be deemed to meet the requirements of
10 this paragraph and may continue to serve unless and
11 until he or she is no longer the authorized
12 representative of the tribe, tribal education
13 department, or other tribal entity the member was
14 appointed to represent.

15 E. Members of the Council shall receive no compensation for
16 serving on the Council but shall receive travel reimbursement as
17 follows:

18 1. State employees who are members of the Council shall be
19 reimbursed for travel expenses incurred in the performance of their
20 duties by their respective agencies in accordance with the State
21 Travel Reimbursement Act; and

22 2. All other members of the Council shall be reimbursed by the
23 Office of Management and Enterprise Services for travel expenses
24

1 incurred in the performance of their duties in accordance with the
2 State Travel Reimbursement Act.

3 F. The Council shall act in accordance with the provisions of
4 the Oklahoma Open Meeting Act and the Oklahoma Open Records Act.

5 G. Members who serve on the Council shall be exempt from the
6 dual-office-holding prohibitions of Section 6 of Title 51 of the
7 Oklahoma Statutes.

8 H. The Council shall have the following duties:

9 1. Identify strategies for developing an efficient and reliable
10 process of communications between Oklahoma education entities,
11 educators, tribal organizations, and other interested parties;

12 2. Identify and disseminate research-based, measurable
13 criteria, both behavioral and academic, by which the success and
14 efficacy of the education offered to Native American students in
15 Oklahoma may be measured;

16 3. Analyze data to ensure that education agencies in Oklahoma
17 continue to address the education needs of Native American students;

18 4. Encourage and promote Native American educational leadership
19 at all levels of the education system; and

20 5. Make recommendations to the State Board of Education for
21 programs that will help achieve the purposes of the Oklahoma
22 Advisory Council on Indian Education Act.

23 I. The Council shall evaluate and make an annual report on the
24 effectiveness of the public education system in Oklahoma in meeting

1 the needs of Native American students in Oklahoma. The report shall
2 be electronically submitted to the State Board of Education. The
3 report shall also contain a summary of the findings made by the
4 Council pursuant to subsection H of this section, a summary of all
5 data collected by the Council, a summary of the means by which all
6 data was collected by the Council, and any other information deemed
7 necessary by the Council.

8 SECTION 2. This act shall become effective July 1, 2026.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health, or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

13 Passed the Senate the 9th day of March, 2026.

14
15 _____
16 Presiding Officer of the Senate

17 Passed the House of Representatives the ____ day of _____,
18 2026.

19
20 _____
21 Presiding Officer of the House
22 of Representatives
23
24